

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
 WENDY SMITH, *individually*, and *as m.n.g of infant A.P.*,
 RASHAWN SMITH, DESHAWN SMITH, DEWAIN
 SMITH, TYREEK PORTER, JERMAINE HALE, and
 ZAHIR PORTER,

Plaintiffs,

-against-

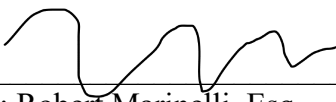
THE CITY OF NEW YORK, SSA ROBERT MARTINEZ
 (Tax No. 922716), DET. SEAN FELICIANO
 (Tax No. 933773), P.O. MATTHEW DEMAIO (SH# 23579),
 SGT. ROBERT DANDREA (SH# 3137), P.O. ALEXIS M.
 YANEZ (Tax No. 953588), POLICE OFFICER(S)
 JOHN/JANE DOE(S) (*Police Officers whose identify
 is currently unknown*),

Defendant(s).

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To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty (20) days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within thirty (30) days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: March 13, 2020
 New York, NY


 By: Robert Marinelli, Esq.
 Attorney for Plaintiff
 Law Office of Robert Marinelli, PC
 305 Broadway, Ste. 1001
 New York, New York 10007
 (212) 822-1427

Defendants' Addresses:

THE CITY OF NEW YORK
 New York City Law Department
 100 Church Street
 New York, NY 10007

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Index No.

COMPLAINT

Jury Trial Demanded on All
Issues

-----X
Plaintiff, by his attorney, ROBERT MARINELLI, ESQ., complaining of the Defendants,
respectfully alleges as follows:

PARTIES

1. At all times hereinafter mentioned, Plaintiffs WENDY SMITH, *individually*, and
as m.n.g of infant A.P., RASHAWN SMITH, DESHAWN SMITH, DEWAIN SMITH, TYREEK
PORTER, JERMAINE HALE, and ZAHIR PORTER (“Plaintiffs”), were and are residents of the
State of New York.

2. At all times hereinafter mentioned, defendant THE CITY OF NEW YORK (the
“CITY”) was and still is a municipality organized and existing under and by virtue of the laws of
the State of New York.

3. At all times hereinafter mentioned, defendant New York City Police Department
(“NYPD”), was an agency of the CITY, and the CITY operated, maintained, managed,
supervised and controlled the NYPD as part of an in conjunction with its municipal function

4. At all times hereinafter mentioned, defendants, SSA ROBERT MARTINEZ (Tax No. 922716), DET. SEAN FELICIANO (Tax No. 933773), P.O. MATTHEW DEMAIO (SH# 23579), SGT. ROBERT DANDREA (SH# 3137), P.O. ALEXIS M. YANEZ (Tax No. 953588) POLICE OFFICER(S) JOHN/JANE DOE(S) (*Police Officers whose identify is currently unknown*) (collectively, "Individual Defendants") were police officers, employees and agents of NYPD and CITY, acting within the scope of his employment and under color of state law.

5. Individual Defendants are sued in their individual and official capacities.

JURISDICTION

6. This Court has concurrent jurisdiction over the 42 USC § 1983 causes of action herein, pursuant to *Felder v. Casey*, 487 US 131, 139 (1988).

FACTUAL ALLEGATIONS

7. On March 24, 2017, plaintiffs were all present 731 Hegemon Avenue, apartment nine in Brooklyn, New York. Wendy, Deshaun, Tyreek, Zahir Porter, A.P., and Dewain are residents, Jermaine was a visitor.

8. At approximately 11:45 P.M. Defendants knocked loudly on the plaintiffs' door. Wendy went to investigate the cause of the commotion. When Wendy opened the door, Defendants insisted that Wendy allow them entrance.

9. Wendy told the Defendants that they would need a warrant. The defendants ignored her and pushed their way into the residence.

10. Upon defendants' entrance, plaintiffs were awoken, handcuffed and removed from their beds, and placed them in the living room.

11. While in the living room Zahir Porter was pushed face first into a couch while his arm was violently pulled behind his back.

12. A.P. and Deshawn were both thrown to the ground and struck multiple times about their face and body.

13. Tyreek was placed in excessively tight handcuffs. His pleas to have his cuffs loosened were ignored.

14. While this was occurring, other defendants began ransacking the apartment.

15. Defendants did not know the cause of this invasion. The defendants claimed to have heard a gunshot provoking their entrance.

16. Plaintiffs were each arrested and taken to the 75th precinct. Zahir Porter and A.P. were neither wearing shoes or a shirt when they were taken to the police vehicle.

17. Plaintiffs each remained at the precinct for over two days.

18. Zahir Porter and A.P., minors, were not placed in the cell. They were handcuffed to chairs for the two days they were at the precinct.

19. Zahir Porter and A.P. were then taken to a juvenile detentions center.

20. The other plaintiffs were taken to Brooklyn Central Booking.

21. After over three days in custody, Wendy, Tyreek, Jermaine and Dewain were released.

22. Zahir Porter and A.P. were not released from the juvenile detention center until approximately five days after their arrest.

23. Upon release, Zahir Porter and A.P. were not allowed to return home, and were placed with their aunt.

24. All of the above occurred as a direct result of the unconstitutional policies, customs,

and practices of the CITY OF NEW YORK, including, without limitation, the inadequate screening, hiring, retaining, training, and supervising of its employees.

25. The aforesaid is not an isolated incident, defendant City is aware (from lawsuits, notices of claims, and complaints filed with the NYPD's Internal Affairs Bureau and the CCRB) that many NYPD officers, including the defendants, are insufficiently trained, supervised, and disciplined regarding: reporting misconduct of other officers; the use of excessive force; searching individuals and their private property; and seizing individual's personal property including cellular used to record police conduct.

26. Moreover, upon information and belief, defendant City was aware, prior to the incident, that the individual defendants lacked the objectivity, temperament, maturity, discretion, and disposition to be employed as police officers. Despite such notice, defendant City has retained these officers, and failed to adequately train and supervise them.

27. Defendant City is further aware that such improper supervision and training has often resulted in a deprivation of civil rights. Despite such notice, defendant City has failed to take corrective action. This failure caused the officers in the present case to violate plaintiff s' civil rights.

28. All of the aforementioned acts of defendants, their agents, servants, and employees were carried out under the color of state law.

29. All of the aforementioned acts deprived plaintiffs of the rights, privileges, and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. §1983.

30. The acts complained of were carried out by the aforementioned individual

defendants in their capacities as police officers, with the entire actual and/or apparent authority attendant thereto.

31. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

32. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

33. As a result of the foregoing, plaintiffs sustained, inter alia, physical and psychological injuries, pain, and mental anguish, emotional distress, embarrassment, humiliation, and deprivation of his liberty and constitutional rights.

34. As a result of the foregoing, plaintiffs are entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs, and disbursements of this action.

FIRST CAUSE OF ACTION:
False Arrest/Imprisonment
(Pursuant to 42 U.S.C. § 1983)

35. Plaintiffs incorporates by reference and realleges all of the preceding paragraphs of this complaint as though fully set forth herein.

36. Defendants arrested, imprisoned, and violated plaintiff's the Fourth and Fourteenth Amendment rights when they arrested plaintiff without probable or reasonable cause.

37. As a direct and proximate result of this unconstitutional conduct, Plaintiffs

sustained the damages herein alleged.

SECOND CAUSE OF ACTION
Malicious Prosecution
(Pursuant to 42 U.S.C. § 1983)

38. Plaintiffs incorporates herein by reference the allegations set forth in the preceding paragraphs.

39. Defendants initiated and continued criminal proceedings against Plaintiffs without probable or reasonable cause

40. By their conduct, as described herein, and acting under color of state law, defendants are liable to plaintiff under 42 U.S.C. § 1983 for the violation of Plaintiffs constitutional right to be free from malicious prosecution under the Fourth and Fourteenth Amendments to the United States Constitution.

41. Defendants' unlawful actions were done willfully, knowingly, with malice and with the specific intent to deprive plaintiff of his constitutional rights. The prosecution by defendants of Plaintiffs constituted malicious prosecution in that there was no basis for the Plaintiffs' arrest, yet Defendants continued with the prosecution, which was resolved in Plaintiffs' favor.

42. As a direct and proximate result of this unconstitutional conduct, Plaintiffs sustained the damages herein alleged.

THIRD CAUSE OF ACTION
Denial of the Right to a Fair Trial
(Pursuant to 42 USC § 1983)

43. Plaintiff incorporates herein by reference the allegations set forth in the preceding paragraphs.

44. The Individual Defendants created false evidence against Plaintiffs.

45. The Individual Defendants forwarded false evidence to prosecutors in the New

York County District Attorney's office.

46. As a direct and proximate result of this unconstitutional conduct, Plaintiffs sustained the damages herein alleged.

FOURTH CAUSE OF ACTION
Excessive Force
(Pursuant to 42 USC §1983)

47. Plaintiffs incorporates herein by reference the allegations set forth in the proceeding paragraphs.

48. That NYPD Individual Defendants had no legal cause or reason to use excessive force against Plaintiffs.

49. That NYPD Individual Defendants violated Johnson's First, Fourth, Eighth and Fourteenth Amendment right to be free from unreasonable seizures when they used excessive force against them.

50. At the time of the excessive force, Plaintiffs did not pose a threat to the safety of the officers.

51. Plaintiffs was not actively resisting custody or attempting to evade custody.

52. Plaintiffs suffered serious permanent physical injuries from NYPD Individual Defendants' use of excessive force.

53. That NYPD Individual Defendants' actions were grossly disproportionate to the need for action and were unreasonable under the circumstances.

FIFTH CAUSE OF ACTION
Failure to Intervene
(Pursuant to 42 USC §1983)

54. Plaintiffs incorporates herein by reference the allegations set forth in the proceeding paragraphs.

55. Those defendants who were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene. Accordingly, the defendants who failed to intervene violated the First, Fourth, Fifth and Fourteenth Amendments.

56. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages herein alleged.

SIXTH CAUSE OF ACTION:

Municipal Liability

(Pursuant to § 1983)

57. Plaintiffs incorporate herein by reference the allegations set forth in the preceding paragraphs.

58. This is not an isolated incident. The City, through policies, practices and customs, directly caused the constitutional violations suffered by Plaintiffs.

59. The City, through its police department, has had and still has hiring practices that it knows will lead to the hiring of police officers lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

60. The City, through its police department, has a de facto quota policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence, perjury, and harassing criminal defendants represented by counsel.

61. Upon information and belief, the City, by widespread custom and practice, did not exercise reasonable care and diligence in the selection, engagement, employment and training of its agents, servants, and employees, including Individual Defendants so as to constitute deliberate indifference to civilians' constitutional rights.

62. The City, at all relevant times, was aware that these individual defendants routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

63. Upon information and belief, the City had prior knowledge of the inappropriate, unlawful and improper conduct of its agents, servants and employees, including Individual Defendants that deprived civilians, including Plaintiffs of their constitutional rights, so as to constitute deliberate indifference.

64. The City, at all relevant times, was aware that these individual defendants are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct these policies, practices, and customs were the moving force behind plaintiff's injuries.

JURY DEMAND

65. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

CPLR § 1602 STATEMENT

66. That this action falls within one or more of the exceptions set forth in the C.P.L.R. §1602.

1. CPLR Section 1602, Subdivision 7, relating to “the defendants’ having acted with reckless disregard for the safety of others”.
2. CPLR Section 1602, Subdivision 11, relating to “the defendants’ having acted knowingly or intentionally and in concert to cause the act or failures”.

CONCLUSION

WHEREFORE, Plaintiff requests that the Court grant the following relief jointly

and severally against Defendants:

- a) Compensatory damages;
- b) Punitive damages;
- c) Attorneys' fees and costs pursuant to 42 U.S.C. §1983;
- d) Interest, costs and disbursements;
- e) Other and further relief as the court deems proper.

Dated: March 13, 2020
New York, NY



By: Robert Marinelli, Esq.
Attorney for Plaintiff
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